

“[The recorded materials] were not produced in discovery.”

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- **Document:** Motion in Limine No. 6
 - **Declarant:** Priya D. Navaratnasingham (Phillips, Spallas & Angstadt LLP)
 - **Filed under penalty of perjury**
 - *CT 1, pp. 149–151*

“Defendant has no idea where this 911 call log or audio recording came from.”

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- **Document:** Motion in Limine No. 17
 - **Declarant:** Priya D. Navaratnasingham (Phillips, Spallas & Angstadt LLP)
 - **Filed under penalty of perjury**
 - *CT 1, pp. 238–241*

“This is news to me.”

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- **Speaker:** Priya D. Navaratnasingham, in open court
 - **Context:** Response after sworn testimony by former counsel Jeremy Jessup (Dolan Law Firm) that 911 audio, BWC footage, and CAD log were produced to defense in 2022 and used at depositions
 - **Court’s response:** “I see. Okay.” – no verification ordered
 - *Hr’g Tr. Feb. 18, 2025, p. 141, ll. 4–11*

“We did not receive the 911 call until the day of the MSC.”

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- **Speaker:** Priya D. Navaratnasingham, in open court
 - **Context:** Claim that defense office first received 911 audio via link the day of (or day before) the Mandatory Settlement Conference – 883 days after the Dolan firm served it on defense in August–September 2022
 - **Court’s response:** Continuance denied at Hr’g Tr. p. 181, l. 1
 - *Hr’g Tr. Feb. 18, 2025, p. 141, ll. 4–11*

“This is not anything that we received as part of the subpoena.”

- **Speaker:** Priya D. Navaratnasingham, in open court, Trial Day 7
- **Subject:** Supplemental SFPD Report
- **Fact:** Defense personally signed Complex Subpoena CA1147102-021 (Feb. 1, 2024) commanding SFPD to produce “ANY AND ALL DOCUMENTS AND RECORDS” related to the incident – SFPD complied
- **Result:** Court excluded supplemental report: “it is not evidence” (RT 7, PG. 159, ll. 2–3)
- *RT 7 (Apr. 16, 2025), PG. 158, ll. 7–9*

“I am not sure what recording he is referring to.”

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- **Speaker:** Priya D. Navaratnasingham, in open court, Trial Day 7
 - **Subject:** The 911 audio recording
 - **Context:** Defense MILs had already been filed representing “no idea where this 911 call came from” – this oral statement repeated that posture at trial
 - **Result:** 911 recording deferred until after plaintiff testified (RT 7, ll. 3024–3057)
 - *RT 7 (Apr. 16, 2025), PG. 164, l. 6*

“Sure. They were provided by Dolan. He has had them for whatever, sure.”

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- **Speaker:** Priya D. Navaratnasingham, same day as “I am not sure what recording”
 - **Subject:** Body-worn camera footage on defense’s own exhibit list
 - **Significance:** Proves every prior non-receipt representation was false when made. Admission came *after* the supplemental report was excluded, the 911 was deferred, and the BWC footage was curated
 - *RT 7 (Apr. 16, 2025), PG. 214, ll. 13–15*

“Yes. That is my voice.”

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- **Speaker:** Defendant Subhi Abdelhalim, on the stand, Trial Day 8
 - **Subject:** The 911 audio recording – the same recording defense’s MILs claimed was of “unknown provenance” and “no idea where it came from”
 - **Admission on the recording:** “I barely hit him with anything”
 - **Significance:** Defendant himself authenticated the recording after all suppressive rulings had already been entered
 - *RT 8 (Apr. 17, 2025), PG. 109, l. 28; RT 8, l. 1979*

Produced to defense Aug.–Sept. 2022. Used at depositions.

- **Speaker:** Jeremy M. Jessup (Dolan Law Firm), under oath
- **Testimony:** 911 audio, body-worn camera footage, and CAD log were produced to defense counsel during discovery and at the Rosario deposition in 2022
- **Defense response:** Did not impeach Jessup; did not correct prior representations after this sworn testimony
- **Legal significance:** Under CRPC rule 3.3(b), the duty to correct a false statement to a tribunal is continuing – defense never corrected
- *Hr’g Tr. Feb. 18, 2025, pp. 138–140*

Defense Personally Subpoenaed the Same 911, BWC, CAD, and Related Records It Later Claimed Were Unknown

- **Document:** Compex Subpoena CA1147102-021, signed by Alberto Reyna for Phillips, Spallas & Angstadt LLP
- **Scope:** Commands production of the 911 call, body-worn camera footage, CAD materials, and “any and all documents and records” tied to Report No. 210079556
- **Significance:** Documentary proof that defense knew exactly what silent-witness materials existed and affirmatively sought them from SFPD
- *Tab 15; Compex Subpoena CA1147102-021 (Feb. 1, 2024)*

The Defense File Carrying the Silent-Witness Materials Was Transferred to Phillips, Spallas & Angstadt LLP

- **Document:** Substitution of Attorney filed May 4, 2023, Transaction ID 69953800
- **Effect:** Custody of the defense file moved from prior counsel to Phillips, Spallas & Angstadt LLP after the 2022 Dolan production
- **Significance:** The later “news to me” and “we did not receive” statements cannot be explained by a missing file-transfer link
- *Tab 1; Substitution of Attorney (May 4, 2023), Trans. ID 69953800*

Silent-Witness Materials Were Produced to Defense in 2022 and Used at Depositions Long Before Trial

- **Foundation:** Jeremy Jessup testified under oath that 911 audio, BWC footage, and CAD materials were produced to defense in 2022 and used at depositions
- **Chain:** That 2022 production predates the May 2023 substitution and the February 2024 Compex subpoena
- **Significance:** Establishes the original delivery chain that makes the 2025 non-receipt narrative impossible on its own terms
- *Hr'g Tr. Feb. 18, 2025, pp. 138–140*

Defense MILs Frame Silent Witnesses as Having Unknown Provenance

- **Cause:** MIL No. 6 and MIL No. 17 filed with sworn declarations: “not produced in discovery” / “no idea where this 911 call came from” (*CT 1, pp. 149–151; 238–241*)
- **Court action:** MILs placed on calendar; provenance framing established the premise for every subsequent ruling on the silent witnesses
- **Downstream:** Foundation burden for 911 audio, BWC footage, and CAD log placed entirely on plaintiff – despite defense’s own prior possession (Jessup, Hr’g Tr. Feb. 18, pp. 138–140) and defense’s own Complex Subpoena CA1147102-021 (Feb. 1, 2024) commanding SFPD to produce the same materials by name

911 Materials Conditionally Excluded Pending Foundation

- **Cause:** Defense provenance challenge to 911 materials
- **Court action:** 911 CD excluded “unless and until” plaintiff lays foundation; “so-called transcripts” not admitted as evidence – jurors may receive copy only as “a guide, not evidence” (*Hr’g Tr. Jan. 27, 2025, p. 38–41*)
- **Downstream:** The 911 recording – containing defendant’s admission “I barely hit him with anything” – placed behind a foundation barrier resting on the false premise of uncertain provenance; transcript downgraded from evidence to a guide, diminishing its probative force in deliberations

Continuance Denied After Evidence-Access Dispute Surfaces

- **Cause:** Jessup testifies under oath: produced to defense in 2022, used at depositions (*Hr'g Tr. pp. 138–140*). Defense responds: “news to me.” Court: “I see. Okay.” (*p. 141, l. 15*) – no verification ordered
- **Court action:** “The motion to continue is denied.” No surprise under CCP 473; plaintiff “missed discovery deadline” (*Hr'g Tr. p. 181, l. 1; p. 183, ll. 1–6*)
- **Downstream:** No time to prepare 911 audio, BWC, CAD log, or supplemental report for admissible jury-usable presentation – no foundation witnesses, no clip prep, no authentication stipulations – all denied because court credited false “news to me” without verification

Court Announces Non-Verification Rule

- **Court's exact words:** "I'm not going to question a lawyer's remarks regarding what they have and don't have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court... So far I haven't heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly." (*Hr'g Tr. Feb. 28, 2025, p. 291, ll. 26–28 through p. 292, ll. 1–7*)
- **Downstream:** This announced rule created the structural opening through which every subsequent non-receipt representation operated without challenge. The court committed not to verify what counsel claimed to possess. Defense misrepresentations about the silent witnesses received institutional protection

Silent-Witness Foundation Burden Shifted to Plaintiff

- **Court action:** Plaintiff must send silent-witness documents to defense “or they would not be allowed in” (*Hr’g Tr. Feb. 28, 2025, p. 293, ll. 1–3*)
- **The hidden fact:** Evid. Code §§ 1280 (official-records exception) and 1561 (custodian-affidavit presumption) were *already discharged* inside defense’s own Complex Subpoena CA1147102-021 response – SFPD complied when served by defense
- **Downstream:** Plaintiff required to re-lay a foundation the defense’s own subpoena had already satisfied – a procedural tax imposed by the non-receipt misrepresentation, not a neutral discretionary call

Supplemental SFPD Report Excluded at Trial

- **Cause:** Navaratnasingham: “this is not anything that we received as part of the subpoena” (*RT 7, PG. 158, ll. 7–9*) – non-verification rule in full effect
- **Court action:** Court excludes supplemental report: “narrative/supplemental we are addressing. Two, it is not evidence.” (*RT 7, PG. 159, ll. 2–3; see also ll. 2888–2896*)
- **Downstream:** The nine-page contemporaneous law-enforcement narrative corroborating plaintiff’s account was excluded *entirely*. The jury never saw this silent witness. Exclusion rested on the false non-receipt claim – the same subpoena that commanded “ALL DOCUMENTS AND RECORDS” had already obtained this report

911 Recording Deferred; Forced Reverse Order of Proof

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- **Cause:** Navaratnasingham: “I am not sure what recording he is referring to” (*RT 7, PG. 164, l. 6*) – court required plaintiff to testify first
 - **Court action:** 911 audio deferred until after plaintiff testified (*RT 7, ll. 3024–3057*)
 - **Downstream:** Jury heard plaintiff’s account in a vacuum before hearing defendant’s contemporaneous admission “I barely hit him with anything.” The probative force of independent, contemporaneous corroboration was structurally undermined – the jury formed its initial credibility assessment of plaintiff before the silent witness could speak

Authentication Burden Flipped to Plaintiff Despite Defense's Own Subpoena

- **Cause:** Non-receipt narrative sustained through trial; non-verification rule in effect; defense feigned continued uncertainty about the silent witnesses
- **Court action:** Plaintiff required to re-lay foundation for each silent witness – foundation that defense's own Complex Subpoena CA1147102-021 (*signed Reyna, Feb. 1, 2024*) had already discharged via Evid. Code §§ 1280 and 1561
- **Downstream:** Each silent witness subjected to a foundation gauntlet that consumed trial time and created additional objection opportunities – a procedural tax that would not have existed if the court had verified defense's actual possession at any prior hearing

Body-Worn Camera Footage Curated by Defense

- **Cause:** Non-receipt posture gave defense control over which BWC footage reached the jury; plaintiff bore the authentication burden; defense controlled its own exhibit list
- **Court action:** Jury shown defense-curated subset of roughly 8–9 minutes of BWC footage – not the full set of approximately five videos the defense possessed since 2022 and subpoenaed by name in 2024 (*RT 7, PG. 215–216*)
- **Contradiction on the record:** Minutes after Reyna claimed “not sure what recording,” Navaratnasingham stated: “Sure. They were provided by Dolan. He has had them for whatever, sure.” (*RT 7, PG. 214, ll. 13–15*) – proving curation was a product of the non-receipt strategy

Reporter Readback Denied at the 911 Impeachment Moment

- **Cause:** Defendant testified in court: “I had no contact” / “didn’t hit” plaintiff (*RT 8, PG. 857–859, 1289*). Defendant then acknowledged on the 911 recording: “I barely hit him with anything” (*RT 8, PG. 1958–1959, 1977–1981*). Plaintiff requested reporter readback to crystallize the contradiction
- **Court action:** “No. We are not going to do that.” (*RT 8, PG. 1990–1993*)
- **Downstream:** The 911 silent witness had already been deferred past plaintiff’s testimony (Link 7); now its impeachment force was also blunted – the jury heard the contradiction but was denied the clearest possible presentation of it

Defense Admits on the Record: “They Were Provided by Dolan”

- **Statement:** Navaratnasingham: “Sure. They were provided by Dolan. He has had them for whatever, sure.” (*RT 7, PG. 214, ll. 13–15*)
- **Significance:** This admission proves every prior non-receipt representation – MIL No. 6, MIL No. 17, “news to me,” “not anything we received,” “not sure what recording” – was false when made
- **Timing:** The admission came *after* the supplemental report was excluded (Link 6), the 911 was deferred (Link 7), the foundation burden was shifted (Links 5 & 8), and the BWC was curated (Link 9). The silent witnesses were structurally damaged before defense’s own counsel confirmed their provenance

Defendant Authenticates the Suppressed 911 Recording

- **Statement:** Defendant Abdelhalim: “Yes. That is my voice.” (*RT 8, PG. 109, l. 28; l. 1979*)
- **Significance:** The defendant authenticated the recording that defense’s MILs had claimed was of “unknown provenance.” The admission on that recording – “I barely hit him with anything” – is now confirmed genuine. The provenance challenge that justified the conditional exclusion, continuance denial, and burden shift was false
- **Timing:** By the time defendant authenticated the recording, the structural damage was done – plaintiff had already testified without corroboration; the jury had already formed its credibility assessment in a vacuum

The Verdict: 9-to-3 (Civil Minimum)

- **Verdict:** Defense verdict – “No” to negligence. Nine jurors confirmed; three did not (*RT 11, PG. 15–18; jury poll PG. 17*)
- **Margin:** The civil minimum under CCP § 618. One juror shift would have prevented any defense verdict
- **Causation:** The silent witnesses – 911 admission, full BWC footage, supplemental SFPD report, CAD log – were the objective, contemporaneous, law-enforcement-generated corroboration most likely to shift at least one of the nine defense jurors. Their suppression, deferral, curation, and burdening – all procured by the non-receipt misrepresentation – deprived the jury of this evidence
- **Standard:** Under *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471, plaintiff need not show the evidence would have changed the verdict – only that the misrepresentation prevented a fair opportunity to present it. *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042: structural denial is reversible regardless of harmless error